
2:00 PM **LINE 5**

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE, NO. 1-9)

TENTATIVE RULING:

Plaintiff Chunyu Tan's Motion for Terminating, Issue, Evidence, and Monetary Sanctions Regarding Plaintiff's Requests for Production of Documents (Set One, Nos. 1–9) is **GRANTED in part**.

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Requests for Production of Documents, Set One.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff's counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

On August 7, 2025, having failed to provide any responses whatsoever, Yang was ordered to serve code-compliant responses to Tam's first set of requests for production by August 19, 2025, and to pay sanctions in the amount of \$425 by September 9, 2025. (Aug. 7, 2025 Order; see Aug. 7, 2025 Affidavit of Service.) At an unspecified time, Yang served responses to the requests, in which he stated his inability to comply with any because he variously is not aware of any responsive documents, has not identified any, or does not possess any. (See March 13, 2026 Separate Statement, Request for Production [Sep. Stmt], *passim*.) On November 18, 2025, Yang served further responses the day before an informal discovery conference which had been scheduled to address defects in the original responses. (March 13, 2025 Declaration of X. Young Lai [Requests for Production]), ¶¶ 3–4, 6–7, 9.)

Neither the original responses nor the further response are code-compliant: each fails to “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party” and “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item” as required by statute. (Code Civ. Proc., § 2031.230; see Sep. Stmt, *passim*.) Nor at any time did Yang pay the monetary sanction. (Lai Decl., ¶ 3.) Therefore, Yang in violation of the August 7, 2025 order.

On this basis, Tan seeks every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c).)

C. Law Governing Sanctions for Discovery Misuse

“It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that “a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court

may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing “misuses of the discovery process”, which include “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.”], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has “persisted in its pattern of failure or refusal to give meaningful responses to discovery.” (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.)

D. Discussion

In addition to the delay in prosecution she has suffered, Tan contends she is prejudiced by the fact that no documents have been produced and accuses Yang of “withholding documents to avoid establishing his liability.” (March 13, 2026 Motion [Requests for Production], at pp. 7, l. 19.) That is, Tan argues that the fact that Yang says he has no documents is the problem.

Terminating, issue, and evidentiary sanctions are only appropriate if discovery misuse causes a party to be unable to prove or defend against claims, and the defects here have not done so. Yang's failure to state “whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party” or to “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item,” has prejudiced plaintiff's

ability to prosecute this case. (Code Civ. Proc., § 2031.230.) Accordingly, the court **ORDERS** defendant Yang to provide code-compliant responses, without objection, and to produce all responsive non-privileged documents in his possession, custody, and control within thirty (30) days of notice of entry of the formal order. If any documents are withheld on the ground of attorney-client or other privilege, Yang must produce a privilege log within forty-five (45) days of notice of entry of the formal order. If Yang fails to comply with this order, the court will consider ordering further sanctions.

The court further grants in part the request for monetary sanctions. The court credits plaintiff for five hours of attorney time at \$500/hour ($5 \times \$500 = \$2,500$). (See Lai Decl., ¶ 14(c).) The court is reducing the requested time because there is no opposition for plaintiff's counsel to review, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang and his counsel of record is **GRANTED** in the amount of \$2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM **LINE 6**

24-CIV-05711

WPS GLOBAL CONNEX, LLC VS. ROSIE BARRETT, ET AL

WPS GLOBAL CONNEX, LLC
ROSIE BARRETT

CRISOSTOMO G. IBARRA
KUSCHA HATAMI FARD

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motions of Kuscha Hatami Fard and Bruno Tarabichi to be relieved as counsel of record for defendants Rosie Barrett and James E. Barrett Corp. are **GRANTED**.

Pursuant to California Rules of Court, rule 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.